

**A RESOLUTION ESTABLISHING AN EMPLOYEE BENEFITS CUSTODIAL
FUND (FUND 026) PURSUENT TO SECTION 5705.09 OF THE REVISED
CODE.**

WHEREAS, the School District became the custodial holder and fiscal agent for a legally separate entity, the Suburban Health Consortium (the Consortium), effective October 1, 2025; and

WHEREAS, as a result, this Board desires to establish an Employee Benefits Custodial Fund (026) (the Fund) pursuant to Section 5705.09 of the Revised Code for the purpose of accounting for monies received from employee benefits self-insurance funds of school districts forming an insurance “pool” for employee benefits;

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of Brecksville-Broadview Heights City School District, County of Cuyahoga, Ohio, that:

Section 1. Establishment of Employee Benefits Custodial Fund. As authorized by Section 5705.09 of the Revised Code, the Board hereby establishes an Employee Benefits Custodial Fund (Uniform School Accounting System Fund No. 026), to be known as the Employee Benefits Custodial Fund, for the purpose of accounting for monies received from employee benefits self-insurance funds of school districts forming an insurance “pool” for employee benefits, specifically the Consortium. The Treasurer is hereby instructed to open USAS Fund 026 (Employee Benefits Custodial) for the Fund.

Section 2. Additional Matters. The Treasurer is hereby authorized to execute such other agreements, certificates, instruments, or other documents as may be necessary or appropriate in order to carry out the intent of this Resolution. Such documents shall be in a form substantially consistent with the terms of this Resolution as the Treasurer shall deem necessary or appropriate. The execution of such documents by the Treasurer shall be conclusive evidence of the Board’s approval of such documents. The Fund may be amended by the Board if the Board concludes that amendment will better enable the objectives of the Fund to be achieved, including, but not limited to, the conditions under which the Fund will be closed. Upon closure of the Fund, unless otherwise determined by this Board, the principal of the Fund shall be returned to the Consortium or, at the direction of the Consortium, to the new fiscal agent appointed by the Consortium.

Section 3. Prior Acts Ratified and Confirmed. Any actions previously taken by School District officials or agents of this Board in furtherance of the matters set forth in this Resolution are hereby approved, ratified and confirmed.

Section 4. Compliance with Open Meeting Requirements. This Board finds and determines that all formal actions of this Board and of any of its committees concerning and relating to the adoption of this Resolution were taken, and that all deliberations of this Board and of any of its committees that resulted in those formal actions were held, in meetings open to the public in compliance with the law.

Section 5. Captions and Headings. The captions and headings in this Resolution are solely for convenience of reference and in no way define, limit or describe the scope or intent of any Sections, subsections, paragraphs, subparagraphs or clauses hereof.

Section 6. Effective Date. This Resolution shall be in full force and effect from and immediately upon its adoption.